

24STCV18864 24STCV18864

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Case Number: 24STCV18864 Hearing Date: August 26, 2026 Dept: 406

KARLA LEIVA,

Plaintiff,

v.

AIDS HEALTHCARE

FOUNDATION,

Defendant.

Case No.: 24STCV18864

Hearing Date: August 26, 2026

[TENTATIVE]

order RE:

defendant's motion to compel independent
mental examination

BACKGROUND

On July 26, 2024, Plaintiff Karla

Leiva filed this action against Defendant Aids Healthcare Foundation for
employment discrimination and retaliation. Plaintiff alleges that she was

terminated while on disability leave after protesting and reporting Defendant's
illegal activities, including unsafe or uninhabitable conditions.

On July 16, 2026, Defendant filed the instant motion to compel an independent mental examination of Plaintiff. Plaintiff filed an opposition on August 13, 2026. Defendant filed a reply on August 19, 2026.

LEGAL STANDARD

“Any party may obtain discovery . . . by means of a physical or mental examination of (1) a party to the action, (2) an agent of any party, or (3) a natural person in the custody or under the legal control of a party, in any action in which the mental or physical condition (including the blood group) of that party or other person is in controversy in the action.” (Code Civ. Proc., § 2032.020(a).) “If any party desires to obtain discovery by . . . a mental examination, the party shall obtain leave of court.” (Id., § 2032.310(a).) “The court shall grant a motion for a physical or mental examination under Section 2032.310 only for good cause shown.” (Id., § 2032.320(a).)

DISCUSSION

I.

Timeliness

This motion is brought after the discovery cutoff. However, the Court has discretion to consider the motion. (See Code Civ. Proc., § 2024.050.) The Court finds good cause to permit the motion. Plaintiff alleges emotional distress and has designated her own expert on the matter. The examination is necessary to enable Defendant to properly test Plaintiff’s claims and damages. Defendant exercised diligence in seeking Plaintiff’s medical records and conferring on the examination. Permitting the examination is not likely to prevent the case from going to trial on October 20, 2026. Therefore, the Court exercises its discretion to consider the motion.

II.

Good Cause

“[A] party who chooses to allege that he has mental and emotional difficulties can hardly deny his mental state is in controversy.” (Vinson v. Sup. Ct. (1987) 43 Cal.3d 833, 839.)

Moreover, “by asserting a causal link between her mental distress and defendants' conduct, plaintiff implicitly claims it was not caused by a preexisting mental condition, thereby raising the question of alternative sources for the distress.” (Id. at p. 840.)

Here, Plaintiff has asserted emotional distress in the complaint and in discovery. Therefore, Plaintiff has placed her mental state directly at issue. Defendant is entitled to test the veracity of the claims and to determine the existence, cause, and extent of Plaintiff's alleged emotional distress. Thus, there is good cause to conduct the IME.

III.

Scope of Examination

“An order granting a physical or mental examination shall specify the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination.” (Code Civ. Proc., § 2032.320(d).) “The way to describe these ‘diagnostic tests and procedures’—fully and in detail—is to list them by name.” (Carpenter v. Superior Court (2006) 141 Cal.App.4th 249, 260.)

The examiner, Dr. Kalechstein, has provided a description of the examination and established good cause. (See Ogunnubi Decl., Ex. M.) Dr. Kalechstein has further explained that the 29 listed cognitive tests are merely the possible tests that may be administered, but the specific tests to be administered will depend on a review of Plaintiff's medical records and the course of the examination. (Ibid.) The Court defers to the medical expert to determine the necessary tests under the circumstances. Thus, the tests to be administered are limited to those listed in Dr. Kalechstein's description. Dr. Kalechstein estimates that the examination will take 8 to 9 hours. (Ogunnubi Decl., Ex. M.) The examination shall be limited to 8 hours, inclusive of a half-hour lunch break.

CONCLUSION

Defendant's motion to compel independent mental examination is GRANTED. Plaintiff shall appear for the IME on , 2026 at 11835

Olympic Blvd., Suite 1270E, Los Angeles, CA 90064. The nature and scope of the examination shall be as set forth in Exhibit M to the Ogunnubi Declaration. The examination shall be limited to 8 hours, inclusive of a half-hour lunch break.